



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E-11264

MAR 30 1995

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: October 31, 1995

1. GRANTEE: David Sarnoff Research Center, Princeton, NJ.
2. PURPOSE AND LIMITATION: This exemption authorizes the one time transport in commerce of a Gammacell 220 high dose rate research irradiator containing not more than 250 TBq (6800 Ci) of Cobolt-60 pellets or solid metal contained in special form capsules from Princeton, NJ to University Park, PA. The irradiator is in a Type B packaging authorized for import and export shipments by U.S. Certificate of Competent Authority No. USA/6125/B(U), Revision 9. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.416(c).
5. BASIS: This exemption is based on the application submitted by the David Sarnoff Research Center dated May 20, 1994, submitted in accordance with 49 CFR 107.103 and the public process thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Radioactive material, special form, n.o.s.	Class 7	UN 2974	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:
 - a. PACKAGING -

1. The import and export restriction of 49 CFR 173.416(c) is waived. The packaging authorized by this exemption is the Nordion International Gammacell-220 irradiator. The Competent Authority of Canada has certified that this packaging meets all the applicable requirements of the International Atomic Energy Agency in their Certificate of Competent Authority No. CDN/2013/B(U), Revision 8. This Canadian certificate was revalidated for import and export use by the Department of Transportation by Certificate of Competent Authority No. USA/6125/B(U), Revision 9 (See Appendix A).

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2. The packaging must be prepared in accordance with the procedures referenced in U.S. Certificate of Competent Authority No. USA/6125/B(U), Revision 9, and as described in the David Sarnoff Research Center application dated May 20, 1994.

8. SPECIAL PROVISIONS.

a. The irradiator, owned by the David Sarnoff Research Center, is to be transported from the David Sarnoff Research Center in Princeton, NJ to the Pennsylvania State University in University Park, PA.

b. The motor carrier used to transport the irradiator from Princeton, NJ to University Park, PA must have a "Satisfactory" or "Conditional" safety rating as assigned by the Office of Motor Carrier Field Operations, Federal Highway Administration.

c. The shipper using the packaging covered by this exemption must comply with all provisions of this exemption and all other applicable requirements contained in 49 CFR Parts 171-180.

d. The state agency responsible for licensing the possession and use of the irradiator or the Governor's appointed designee of each state that the package transits shall be notified in advance of the time of the planned movement. The special condition in paragraph 4 of certificate USA/6125/B(U), Revision 9, is waived.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard the motor vehicle used to transport packages covered by this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. Section 5101 et seq.:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAR 30 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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